

AO 440 (Rev. 12/09) Summons in a Civil Action

UNITED STATES DISTRICT COURT

for the

Eastern District of New York

PHILLIP WILLIAMS

Plaintiff

v.

CITY OF NEW YORK, ET AL.

Defendant

Civil Action No. 10 CV 5539 (JG) (CLP)

Amended SUMMONS IN A CIVIL ACTION

To: *(Defendant's name and address)* MICHAEL A. CARDOZO, Corporation Counsel of the City of New York
100 Church Street, New York, New York 10007

P.O. JAMIE SANTIAGO, SHIELD NO.: 2596
67th Precinct, 2820 Snyder Avenue, Brooklyn, NY

A lawsuit has been filed against you.

Within 21 days after service of this summons on you (not counting the day you received it) — or 60 days if you are the United States or a United States agency, or an officer or employee of the United States described in Fed. R. Civ. P. 12 (a)(2) or (3) — you must serve on the plaintiff an answer to the attached complaint or a motion under Rule 12 of the Federal Rules of Civil Procedure. The answer or motion must be served on the plaintiff or plaintiff's attorney,

whose name and address are: JON L. NORINSBERG
225 Broadway, Suite 2700
New York, N.Y. 10007

If you fail to respond, judgment by default will be entered against you for the relief demanded in the complaint. You also must file your answer or motion with the court.

CLERK OF COURT

Date: _____

Signature of Clerk or Deputy Clerk

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X
PHILIP WILLIAMS,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. JAMIE SANTIAGO,
SHIELD NO.: 25967, Individually and in his Official Capacity,
P.O.s "JOHN DOE" #1-10, Individually and in their Official
Capacities, (the name John Doe being fictitious, as the true
names are presently unknown),

Defendants.
-----X

**AMENDED
COMPLAINT**

10 CV 5539 (JG) (CLP)

JURY TRIAL DEMANDED

ECF CASE

Plaintiff, Philip Williams, by his attorney, Jon L. Norinsberg, complaining of the defendants,
respectfully alleges as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is founded upon 28 U.S.C. §§ 1331, 1343 and 1367.

VENUE

4. Venue is properly laid in the Eastern District of New York under 28 U.S.C. § 1391(b), in that this is the District in which the claim arose.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38(b).

PARTIES

6. Plaintiff is an African-American male and was at all relevant times a resident of the City and State of New York.

7. Defendant, the City of New York, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant, the City of New York, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, the City of New York.

9. At all times hereinafter mentioned, the individually named defendants, P.O. JAMIE SANTIAGO and P.O.s "JOHN DOE" #1-10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

10. At all times hereinafter mentioned, the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

11. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant City of New York.

12. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant City of New York.

FACTS

13. On November 6, 2008, at approximately 6:00 p.m., plaintiff PHILIP WILLIAMS was lawfully in the vicinity of 92nd Street between Clarkson & Lenox Streets, in the County of Kings, City and State of New York.

14. At the aforesaid time and place, plaintiff PHILIP WILLIAMS was suddenly accosted by several members of the New York City Police Department.

15. Defendants then conducted an unlawful search of PHILIP WILLIAMS, looking inside of his pockets for weapons and contraband.

16. Defendants did not recover any weapons or contraband from plaintiff PHILIP WILLIAMS.

17. Plaintiff PHILIP WILLIAMS asked one of the defendants P.O. "JOHN DOE" #1-10 for the reason as to why he was being searched, to which she poked plaintiff in his mid-section and said, "MIND YOUR FUCKING BUSINESS."

18. Thereafter, defendant P.O. "JOHN DOE" handcuffed plaintiff PHILIP WILLIAMS and placed him under arrest.

19. Notwithstanding the lack of any incriminating evidence against plaintiff PHILIP WILLIAMS, defendant police officers refused to release him and instead continued to process his arrest.

20. Thereafter, plaintiff PHILIP WILLIAMS asked one of the defendant P.O.'s "JOHN DOE" #1-10 why he was being arrested. In response, one of the defendants punched plaintiff in his jaw and stated, "I'M A SERGEANT, THAT'S WHY!"

21. Defendants then threw plaintiff PHILIP WILLIAMS to the ground and repeatedly kicked plaintiff in his head and body.

22. Thereafter, defendants threw plaintiff PHILIP WILLIAMS into a police van and transported him to the 67th Precinct in the County of Kings, State of New York.

23. Thereafter, defendants charged plaintiff PHILIP WILLIAMS with Criminal Possession of a Weapon in the Fourth Degree, Resisting Arrest and Consumption of Alcohol in a Public Place.

24. At no time on November 6, 2008, did plaintiff PHILIP WILLIAMS possess any weapon, consume alcohol in a public place, or resist arrest.

25. As a result of this unlawful arrest, plaintiff PHILIP WILLIAMS spent approximately twenty-four (24) hours in jail, and was required to make multiple court appearances to defend himself against the false charges which defendants had filed against him.

26. Notwithstanding defendants' unlawful and perjurious conduct, on January 19, 2011, all charges against plaintiff PHILIP WILLIAMS were dismissed by the Honorable G. Hong.

27. As a result of the foregoing, plaintiff PHILIP WILLIAMS sustained, inter alia, contusions to his head, back and neck pain, loss of liberty, emotional distress, embarrassment and humiliation and deprivation of his constitutional rights.

FIRST CLAIM FOR RELIEF
DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983

28. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "27" with the same force and effect as if fully set forth herein.

29. All of the aforementioned acts of defendants, their agents, servants and employees were carried out under the color of law.

30. All of the aforementioned acts deprived plaintiff Philip Williams of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America, and

in violation of 42 U.S.C. §1983.

31. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with all the actual and/or apparent authority attendant thereto.

32. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

33. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of his/her respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF
FALSE ARREST UNDER 42 U.S.C. § 1983

34. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "33" with the same force and effect as if fully set forth herein.

35. As a result of defendants' aforementioned conduct, plaintiff PHILIP WILLIAMS was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings, without any probable cause, privilege or consent.

36. As a result of the foregoing, plaintiff PHILIP WILLIAMS sustained, inter alia, contusions to his head, back and neck pain, loss of liberty, emotional distress, embarrassment and humiliation and deprivation of his constitutional rights.

THIRD CLAIM FOR RELIEF
UNLAWFUL SEARCH UNDER 42 U.S.C. § 1983

37. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "36" with the same force and effect as if fully set forth herein.

38. Defendants searched plaintiff PHILIP WILLIAMS in the absence of any individualized reasonable suspicion that plaintiff was concealing weapons or contraband.

39. As a result of the foregoing, plaintiff PHILIP WILLIAMS was subjected to an illegal and improper search.

40. The foregoing unlawful search violated plaintiff PHILIP WILLIAMS' constitutional right to privacy, as guaranteed by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

FOURTH CLAIM FOR RELIEF
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

41. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "40" with the same force and effect as if fully set forth herein.

42. The level of force employed by defendants was objectively unreasonable and in violation of plaintiff PHILIP WILLIAMS' constitutional rights.

43. As a result of the foregoing, plaintiff PHILIP WILLIAMS sustained, inter alia, contusions to his head, back and neck pain, loss of liberty, emotional distress, embarrassment and humiliation and deprivation of his constitutional rights.

FIFTH CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

44. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "43" with the same force and effect as if fully set forth herein.

45. Defendants misrepresented and falsified evidence before the District Attorney.

46. Defendants did not make a complete and full statement of facts to the District Attorney.

47. Defendants withheld exculpatory evidence from the District Attorney.

48. Defendants were directly and actively involved in the initiation of criminal proceedings against PHILIP WILLIAMS.

49. Defendants lacked probable cause to initiate criminal proceedings against plaintiff PHILIP WILLIAMS.

50. Defendants acted with malice in initiating criminal proceedings against plaintiff PHILIP WILLIAMS.

51. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff PHILIP WILLIAMS.

52. Defendants lacked probable cause to continue criminal proceedings against plaintiff PHILIP WILLIAMS.

53. Defendants acted with malice in continuing criminal proceedings against PHILIP WILLIAMS.

54. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

55. Notwithstanding the perjurious and fraudulent conduct of defendants, the criminal proceedings were terminated in plaintiff's favor on January 19, 2011, when all charges against him were dismissed.

56. As a result of the foregoing, plaintiff PHILIP WILLIAMS sustained, inter alia, contusions to his head, back and neck pain, loss of liberty, emotional distress, embarrassment and humiliation and deprivation of his constitutional rights.

WHEREFORE, plaintiff PHILIP WILLIAMS demands judgment in the sum of one million dollars (\$1,000,000.00) in compensatory damages, one million dollars (\$1,000,000.00) in punitive damages, plus attorney's fees, costs, and disbursements of this action.

Dated: New York, New York
March 8, 2011

BY: _____/S/_____
JON L. NORINSBERG (JN-2133)
Attorney for Plaintiff
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New York, N.Y. 10007
(212) 791-5396